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| APPLICATION NO. | FILING DATE | FIRST NAMED INVENTOR | ATTORNEY DOCKET NO. | CONFIRMATION NO. |
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| 18/378,027 | 10/09/2023 | David FORGY | 18101.408426 | 6656 |

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INTELLECTUAL PROPERTY DEPARTMENT
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| EXAMINER | |
|---|---|
| BRINDLEY, TIMOTHY J | |

| ART UNIT | PAPER NUMBER |
|---|---|
| 3636 | |

| NOTIFICATION DATE | DELIVERY MODE |
|---|---|
| 05/27/2025 | ELECTRONIC |

**Please find below and/or attached an Office communication concerning this application or proceeding.**

The time period for reply, if any, is set in the attached communication.

Notice of the Office communication was sent electronically on above-indicated "Notification Date" to the following e-mail address(es):

ipdocket@shb.com
shbdocketing@shb.com

| Office Action Summary | Application No. 18/378,027 | Applicant(s) FORGY et al. | |
|---|---|---|---|
| | Examiner TIMOTHY J BRINDLEY | Art Unit 3636 | AIA (FITF) Status Yes |

*-- The MAILING DATE of this communication appears on the cover sheet with the correspondence address --*

**Period for Reply**

A SHORTENED STATUTORY PERIOD FOR REPLY IS SET TO EXPIRE 3 MONTHS FROM THE MAILING DATE OF THIS COMMUNICATION.

- Extensions of time may be available under the provisions of 37 CFR 1.136(a). In no event, however, may a reply be timely filed after SIX (6) MONTHS from the mailing date of this communication.
- If NO period for reply is specified above, the maximum statutory period will apply and will expire SIX (6) MONTHS from the mailing date of this communication.
- Failure to reply within the set or extended period for reply will, by statute, cause the application to become ABANDONED (35 U.S.C. § 133). Any reply received by the Office later than three months after the mailing date of this communication, even if timely filed, may reduce any earned patent term adjustment. See 37 CFR 1.704(b).

**Status**

1)☑ Responsive to communication(s) filed on 10/9/23.

☐ A declaration(s)/affidavit(s) under **37 CFR 1.130(b)** was/were filed on _____.

2a)☐ This action is **FINAL.** 2b) ☑ This action is non-final.

3)☐ An election was made by the applicant in response to a restriction requirement set forth during the interview on _____; the restriction requirement and election have been incorporated into this action.

4)☐ Since this application is in condition for allowance except for formal matters, prosecution as to the merits is closed in accordance with the practice under *Ex parte Quayle*, 1935 C.D. 11, 453 O.G. 213.

**Disposition of Claims***

5) ☑ Claim(s) 1-19 is/are pending in the application.

5a) Of the above claim(s) _____ is/are withdrawn from consideration.

6) ☐ Claim(s) _____ is/are allowed.

7) ☑ Claim(s) 1-12 and 19 is/are rejected.

8) ☑ Claim(s) 13-18 is/are objected to.

9) ☐ Claim(s) _____ are subject to restriction and/or election requirement

* If any claims have been determined allowable, you may be eligible to benefit from the **Patent Prosecution Highway** program at a participating intellectual property office for the corresponding application. For more information, please see http://www.uspto.gov/patents/init_events/pph/index.jsp or send an inquiry to **PPHfeedback@uspto.gov.**

**Application Papers**

10)☐ The specification is objected to by the Examiner.

11)☑ The drawing(s) filed on 10/9/23 is/are: a)☑ accepted or b)☐ objected to by the Examiner.

Applicant may not request that any objection to the drawing(s) be held in abeyance. See 37 CFR 1.85(a).

Replacement drawing sheet(s) including the correction is required if the drawing(s) is objected to. See 37 CFR 1.121(d).

**Priority under 35 U.S.C. § 119**

12)☐ Acknowledgment is made of a claim for foreign priority under 35 U.S.C. § 119(a)-(d) or (f).

**Certified copies:**

a)☐ All b)☐ Some** c)☐ None of the:

1.☐ Certified copies of the priority documents have been received.

2.☐ Certified copies of the priority documents have been received in Application No. _____.

3.☐ Copies of the certified copies of the priority documents have been received in this National Stage application from the International Bureau (PCT Rule 17.2(a)).

** See the attached detailed Office action for a list of the certified copies not received.

**Attachment(s)**

1) ☑ Notice of References Cited (PTO-892)

2) ☑ Information Disclosure Statement(s) (PTO/SB/08a and/or PTO/SB/08b) Paper No(s)/Mail Date 2/6/24, 5/12/25.

3) ☐ Interview Summary (PTO-413) Paper No(s)/Mail Date _____.

4) ☐ Other: _____.

## DETAILED ACTION

### *Notice of Pre-AIA or AIA Status*

1. The present application, filed on or after March 16, 2013, is being examined under the first inventor to file provisions of the AIA.

2. Claims 1-19 are pending.

3. Claims 1-19 have been examined.

### *Claim Rejections - 35 USC § 112*

4. Claims 4-11 are rejected under 35 U.S.C. 112(b) or 35 U.S.C. 112 (pre-AIA), second paragraph, as being indefinite for failing to particularly point out and distinctly claim the subject matter which the inventor or a joint inventor (or for applications subject to pre-AIA 35 U.S.C. 112, the applicant), regards as the invention.

5. Claim 4 recites "the motorized mechanism further comprising." There is insufficient antecedent basis for "the motorized mechanism." It is unclear what portion of the chair this relates to.

### *Claim Rejections - 35 USC § 102*

6. The following is a quotation of the appropriate paragraphs of 35 U.S.C. 102 that form the basis for the rejections under this section made in this Office action:

> A person shall be entitled to a patent unless –
>
> (a)(1) the claimed invention was patented, described in a printed publication, or in public use, on sale, or otherwise available to the public before the effective filing date of the claimed invention.

7. Claim(s) 1-3, 12 and 19 is/are rejected under 35 U.S.C. 102(a)(1) as being anticipated by LaPointe (US 2011/0248535). LaPointe discloses a stationary base (fig. 3: 47) configured to be coupled between the arms; a rocker assembly (figs. 20, 22: 208) supported on a portion of the stationary base; a reclining mechanism (fig. 21: 200) coupled to the rocker assembly, the

reclining mechanism configured to support the seat and the back of the seating unit; and an auto-rocker assembly (fig. 22: at least elements 212, 214, 232, 225, 238, 228 within rocker assembly 208; paragraph 0084) having a first portion coupled to the stationary base (at 234) and a second portion coupled to the reclining mechanism (at 230), the auto-rocker assembly comprising a rocking actuator (figs. 20-25: rocking arm 238 alone or the elements listed for the auto-rocker together), the auto-rocker assembly having a first state allowing the reclining mechanism to freely rock on the rocker assembly (paragraphs 0084, 0088: drive shaft engagement device 226 is slidably positioned on drive shaft 224 and can be releasably connected to permit manual rocking motion) and a second state where the rocking actuator provides a powered rocking motion to the reclining mechanism on the rocker assembly.

As concerns claim 2, LaPointe discloses wherein the rocking actuator (fig. 22: 212, 214, 232, 225, 238, 228) has a first end coupled to a portion of the reclining mechanism (fig. 22: by cross member 230 connected to side assemblies 40', 42' of the reclining mechanism), shown in fig. 20) and a second end selectively coupled to a portion of the base (fig. 22: at 234), and wherein, when the second end of the rocking actuator is coupled to the base and the rocking actuator is activated, the rocking actuator provides the powered rocking motion to the reclining mechanism on the rocker assembly.

As concerns claim 3, LaPointe discloses wherein the reclining mechanism includes a cross-tube (fig. 22: 230) and the first end of the rocking actuator is coupled to the cross-tube.

As concerns claim 11, LaPointe discloses a stationary base (fig. 3: 47); a rocker assembly (figs. 20, 22: 208) supported on a portion of the stationary base; a reclining mechanism (fig. 21: 200) coupled to the rocker assembly, the reclining mechanism configured to support the seat and the back of the seating unit; and an auto-rocker assembly comprising: a locking actuator (figs. 22, 23: 226, 238) coupled to the stationary base and having an extendable and retractable shaft (fig. 23: 266); and a rocking actuator (fig. 22: 232, 224) coupled to a portion of the reclining mechanism, the rocking actuator having an extendable and

retractable shaft (fig. 22: 224), wherein, with the shaft of the locking actuator in a first position, the locking actuator is disengaged from the rocking actuator, allowing the reclining mechanism to freely rock on the rocker assembly and, with the shaft of the locking actuator in a second position, the locking actuator is engaged with the rocking actuator (fig. 23: 266 is engaged with or withdrawn from 294 in order to impart the motorized rocking or allow rocking freely), such that extension and retraction of the rocking actuator shaft provides a powered rocking motion to the reclining mechanism on the rocker assembly.

As concerns claim 19, LaPointe discloses wherein, with the locking actuator in the first position, the reclining mechanism is freely moveable with respect to the stationary base, and with the locking actuator in the second position, the reclining mechanism is moveable with respect to the base only by engaging the rocking actuator (as discussed above with respect to claim 12).

### ***Allowable Subject Matter***

8. Claims 4-11 would be allowable if rewritten to overcome the rejection(s) under 35 U.S.C. 112(b) or 35 U.S.C. 112 (pre-AIA), 2nd paragraph, set forth in this Office action and to include all of the limitations of the base claim and any intervening claims.

9. Claims 13-18 are objected to as being dependent upon a rejected base claim, but would be allowable if rewritten in independent form including all of the limitations of the base claim and any intervening claims.

10. The following is a statement of reasons for the indication of allowable subject matter: The prior art reference of LaPointe teaches an extendable and retractable shaft (fig. 23: 224) which is within a mounting bracket (fig. 23: 262) and engaged by a pin within a slot (fig. 23: 266) to allow or disallow the movement of the rocker actuator motor to rock the reclining mechanism, but does not teach

wherein the second end of the rocking actuator includes a pin on the end of an extendable and retractable shaft, the motorized mechanism further comprising: a mounting bracket coupled to the stationary base, the mounting bracket having spaced apart sides, at least one of the sides having a slot, wherein the pin of the rocking actuator resides within the slot; and wherein in the first state the pin travels freely within the slot, and in the second state, the pin is captured within the slot, such that operation of the rocking actuator moves the reclining mechanism, through the rocker assembly, with respect to the base; or

wherein the rocking actuator includes a pin on the end of the shaft of the rocking actuator, and wherein with the shaft of the locking actuator in the second position, the locking actuator engages the pin of the rocking actuator to restrict the pin from movement (claim 13).

Further, there is no teaching, suggestion or motivation to modify the prior art absent hindsight.

## ***Conclusion***

11. Any inquiry concerning this communication or earlier communications from the examiner should be directed to TIMOTHY J BRINDLEY whose telephone number is (571)270-7231. The examiner can normally be reached Mon-Fri, 9am-5pm.

Examiner interviews are available via telephone, in-person, and video conferencing using a USPTO supplied web-based collaboration tool. To schedule an interview, applicant is encouraged to use the USPTO Automated Interview Request (AIR) at http://www.uspto.gov/interviewpractice.

If attempts to reach the examiner by telephone are unsuccessful, the examiner's supervisor, David Dunn can be reached at 5712726670. The fax phone number for the organization where this application or proceeding is assigned is 571-273-8300.

Information regarding the status of published or unpublished applications may be obtained from Patent Center. Unpublished application information in Patent Center is available

to registered users. To file and manage patent submissions in Patent Center, visit: https://patentcenter.uspto.gov. Visit https://www.uspto.gov/patents/apply/patent-center for more information about Patent Center and https://www.uspto.gov/patents/docx for information about filing in DOCX format. For additional questions, contact the Electronic Business Center (EBC) at 866-217-9197 (toll-free). If you would like assistance from a USPTO Customer Service Representative, call 800-786-9199 (IN USA OR CANADA) or 571-272-1000.

/TIMOTHY J BRINDLEY/
Primary Examiner, Art Unit 3636